



POLICE DEPARTMENT

October 25, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202303940 (Incident Date: May 4, 2023) regarding Police Officer Kenneth Blazo, Tax No. 969524 (DADS No. 2024-31761)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202303940, pertaining Police Officer Kenneth Blazo. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Blazo would be detrimental to the Police Department's disciplinary process.

In this matter, the Police Commissioner has determined whether the alleged force was intentional or not, Police Officer Blazo's alleged hand strike occurred at a time when the complainant was actively resisting and was therefore within Department guidelines. The Department's use of force policy permits force on a restrained subject in limited circumstances, where it is necessary to prevent injury, escape, or to overcome active resistance or assault. Police Officer Blazo's actions in regard to the alleged force was within Department guidelines to overcome active resistance.

Police Officer Blazo responded to the scene after other officers called for help, as they attempted to place the complainant under arrest for fare evasion. As the original officers attempted to place the complainant under arrest, the complainant moved his arms, kicked, held a defensive stance, and spat at the officers. Police Officer Blazo attempted to help the other officers place the complainant in the police vehicle for transport to the precinct. The complainant actively resisted; body worn camera footage shows the complainant aggressively kicking at the officers, and attempting to leave the police vehicle. After Police Officer Blazo's alleged strike, officers were able to successfully transport the complainant to the precinct.

Additionally, the Police Commissioner disagrees with CCRB's substantiated finding regarding a false official statement to CCRB. Although there is an inconsistency between Police Officer Blazo's statement and what is written in his memo book, said inconsistency does not prove

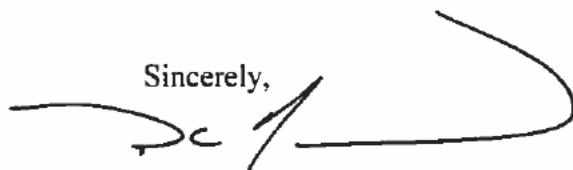
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that Police Officer Blazo intentionally provided an untrue statement. The CCRB investigator failed to give Police Officer Blazo a chance to review his body worn camera before this line of questioning. CCRB did not provide Police Officer Blazo an opportunity to review his footage until the end of the interview, at which time they only asked him about an officer's use of profanity, and did not ask anything regarding his use of force or whether he wanted to amend his prior statement. Furthermore, the nature of the chaotic event and lack of footage capturing the use of force could have impacted Police Officer Blazo's accurate perception or memory of the incident, which occurred approximately five months before his interview. With that said, although there is insufficient evidence to conclude Police Officer Blazo intentionally provided a false statement, the Police Commissioner finds that a substantiated allegation of an inaccurate statement would be more appropriate, based on the body worn camera footage, and statements of other officers.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice intends to retain jurisdiction over this matter. Police Officer Blazo has approximately four years of service and has no prior substantiated CCRB allegations, no formal Department disciplinary history, and was rated exceptional on his last evaluation. The Police Commissioner intends to impose no disciplinary action for the allegations of force and a false official statement to CCRB. Furthermore, the Police Commissioner intends to issue a Schedule "A" Command Discipline with the forfeiture of five (5) vacation days for the inaccurate statement to CCRB.

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', with a large, sweeping flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



October 30, 2024

The Honorable Thomas G. Donlon
Interim Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202303940 PO Kenneth Blazo Tax No. DADS No. 2024-31761

Interim Commissioner Donlon:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated October 25, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications against PO Blazo and issue a Schedule “A” Command Discipline. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department, I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that you analyzed the facts and circumstances of this matter and determined that to pursue Charges and Specifications against PO Blazo would be detrimental to the Police Department’s disciplinary process. Instead, you intend to dismiss the charges and impose the penalty of a Schedule A Command Discipline with the forfeiture of five (5) days.

The CCRB respectfully disagrees with your assessment. The CCRB does not deny that PO Blazo issued a necessary compliance strike when PO Blazo attempted to place § 87(2)(b) inside of the RMP. However, once the civilian was inside the RMP and handcuffed, PO Blazo intentionally struck the civilian. The intentional strike is supported and evidenced on PO Blazo’s BWC. At 3:15-3:23 you can see that the civilian is inside the RMP, and other MOS are on the other side of the vehicle holding the civilian’s upper body area. You can also hear the other MOS shout to PO Blazo to close the door.

Since most of § 87(2)(b) body was inside of the vehicle, PO Cataquet was holding onto his upper body and restricting his movement, § 87(2)(b) was in handcuffs, and other officers made statements to close the door, PO Blazo’s “compliance strike” was not a necessity nor did PO Blazo have a legitimate law enforcement purpose to issue that strike.

Furthermore, although PO Blazo claimed that he may have punched § 87(2)(b) accidentally, his memo book and PO Cataquet, who was the only other officer in a reasonable position to see the punch, confirmed that PO Blazo intentionally conducted a compliance strike to § 87(2)(b) face.



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PO Blazo's 10/17/2023 interview was scheduled on 9/25/2023. PO Blazo, like all officers scheduled to testify at the CCRB, have access and ample opportunity to review their BWC. At 1:00 of PO Blazo's testimony, PO Blazo testified that he understood the process as well as the guidelines under AG 304-06 for False Official Statements before the interview proceeded. After PO Blazo observed the BWC, he had every opportunity to be transparent and provide accurate testimony about the incident.

Lastly, the letter mentions CCRB's failure to play PO Blazo BWC at the beginning of the interview as a factor but, not only is that irrelevant, it is incorrect and evidenced by PO Blazo's interview with the CCRB. At 28:20 of PO Blazo's interview, the investigator states that **prior to the interview, PO Blazo was shown his BWC from 1:00-3:22 mark, as well as PO Blazo's second video.** PO Blazo was then shown the BWC footage **again** at 28:40 of his interview. Not only did PO Blazo have ample time to review his BWC *prior* to the interview, he was shown the video(s) *twice*, prior and during the interview, and still provided an unofficial false statement. The Police Commissioner himself acknowledged that PO Blazo's testimony was inconsistent but, it is the CCRB's position that it does support PO Blazo's intention to provide a false statement.

The CCRB respectfully disagrees with your assessment and requests that the NYPD serve Charges and Specifications upon PO Blazo.

Respectfully submitted,

Andre Applewhite

p.p., Andre Applewhite, Chief Prosecutor for
Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

October 31, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202303940 (Incident Date: May 4, 2023) regarding Police Officer Kenneth Blazo, Tax No. 969524 (DADS No. 2024-31761)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated October 30, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Kenneth Blazo, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Blazo for the reasons expressed in my October 25, 2024 letter.

Therefore, the Police Commissioner affirms his decision to exercise Provision Two of the Memorandum of Understanding and now directs that Police Officer Blazo be issued a Schedule "A" Command Discipline with the forfeiture of five (5) vacation days for the inaccurate statement to CCRB. Furthermore, the Police Commissioner directs that no disciplinary action be imposed for the allegations of force and of the alleged false official statement to CCRB.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office